

Mani Prakash Tiwari vs The State Of Madhya Pradesh on 10 February, 2026

NEUTRAL CITATION NO. 2026:MPHC-JBP:12781

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SHRI JUSTICE HIMANSHU JOSHI
ON THE 10th OF FEBRUARY, 2026
MISC. CRIMINAL CASE No. 47119 of 2023
MANI PRAKASH TIWARI
Versus
THE STATE OF MADHYA PRADESH AND OTHERS
Appearance:
Shri Ankit Saxena - Advocate for the petitioner.
Shri Savita Choudhary - Advocate for the respondent N

ORDER

The instant petition has been filed under Section 482 of the Code of Criminal Procedure, 1973 for quashment of FIR bearing Crime No. 127/2021 registered at Police Station Kotwali Panna, District Panna (M.P.) for offences punishable under Sections 494, 294 and 506 of IPC, and the entire proceedings pending before the learned JMFC, Panna in RCT No. 326/2021. The petitioner has also challenged the order dated 05.08.2023 passed by the learned Second Additional Sessions Judge, Panna in CRR No. 54/2022 affirming the order dated 13.06.2022 passed by JMFC, Panna framing charges against the petitioner under Section 498-A, 494 and 506 of IPC.

2. The brief facts necessary for adjudication are that the petitioner and respondent No.2 were married. Subsequently, the petitioner obtained a decree of divorce vide judgment and decree dated 24.12.2011 passed by learned 3rd Additional District Judge, Damoh in Civil Suit No. 2A/10. The NEUTRAL CITATION NO. 2026:MPHC-JBP:12781 2 MCRC-47119-2023 petitioner and respondent started living separately. The judgment dated 24-12-2011 was subject to challenged in First Appeal No. 37/2012 which is still pending before the High Court. During the pendency of appeal, the petitioner performed second marriage and thus the respondent no. 2, lodge a complaint at Panna on 01-02-2021.

3. It is submitted by the petitioner that earlier respondent No.2 had lodged an FIR under Sections 498-A, 323, 294 and 506-II IPC at Damoh, in which the petitioner was acquitted by JMFC, Damoh vide judgment dated 26.11.2016, and the said acquittal was affirmed in appeal vide judgment dated 07.09.2017. It is contended that registration of the present FIR on similar allegations amounts to abuse of the process of law and is hit by the principle of double jeopardy. It is further submitted that offence under Section 494 IPC is non-cognizable and in view of Section 198 Cr.P.C., cognizance can

be taken only upon a complaint made by the aggrieved person and not on a police report. for the offence under section 494 of IPC it is necessary. He further argued that to attract section 494 of IPC, there must be relation of husband and wife but in the present case the divorce has already taken place and therefore, the charge under section 494 of IPC is also bad in law. The decree of divorce is in effect and has not been stayed by the High Court and therefore no offence is made out. He prays to allow the petition.

4. Per contra, learned counsel for State as well as respondent No.2 submit that the decree of divorce dated 24.12.2011 is under challenge before the High Court and, therefore, during pendency of appeal, the petitioner NEUTRAL CITATION NO. 2026:MPHC-JBP:12781 3 MCRC-47119-2023 could not have contracted a second marriage. It is submitted that the proceedings are rightly initiated.

5. Heard the contentions of all the parties.

6. At the outset, it is necessary to refer to Section 494 of the IPC, which reads as under:

"494. Marrying again during lifetime of husband or wife.-- Whoever, having a husband or wife living, marries in any case in which such marriage is void by reason of its taking place during the life of such husband or wife, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine."

Further, Section 198(1) Cr.P.C. provides:

"198. Prosecution for offences against marriage.-- (1)No Court shall take cognizance of an offence punishable under Chapter XX of the Indian Penal Code except upon a complaint made by some person aggrieved by the offence."

Provided that--

(a) where such person is under the age of eighteen years, or is an idiot or a lunatic, or is from sickness or infirmity unable to make a complaint, or is a woman who, according to the local customs and manners, ought not to be compelled to appear in public, some other person may, with the leave of the Court, make a complaint on his or her behalf;

(b) where such person is the husband and he is serving in NEUTRAL CITATION NO. 2026:MPHC-JBP:12781 4 MCRC-47119-2023 any of the Armed Forces of the Union under conditions which are certified by his Commanding Officer as precluding him from obtaining leave of absence to enable him to make a complaint in person, some other person authorised by the husband in accordance with the provisions of Sub-Section (4) may make a complaint on his behalf;

(c) where the person aggrieved by an offence punishable under section 494 or section 495 of the Indian Penal Code (45 of 1860) is the wife, complaint may be made on her behalf by her father, mother, brother, sister, son or daughter or by her father's or mother's, brother or sister, with the leave of the Court, by any other person related to her by blood, marriage or adoption.

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7. On careful reading of aforesaid provisions, it appears that Section 494 IPC falls under Chapter XX of IPC. Therefore, cognizance of the said offence can only be taken upon a private complaint by the aggrieved person and not on the basis of a police report. However, the law is well settled that FIR can be registered under Section 494 of IPC alongwith any other cognizable offence.

8. In the present case, initially the FIR has been registered by the police for offence under Section 494, 294 and 506 of IPC, however, charges have been framed under Section 498-A, 494 and 506 of IPC vide order dated 13.06.2022. Since, the 506 of Part -II is cognizable offence, therefore, there is not illegality in registering the FIR under Section 494 of IPC alongwith NEUTRAL CITATION NO. 2026:MPHC-JBP:12781 5 MCRC-47119-2023 506 of IPC. It is mentioned in the FIR that the petitioner threatened to life to the complainant.

9. However, on considering the merits of the matter in respect of applicability of Section 494 of IPC, this Court finds that the petitioner has obtained a decree of divorce dated 24.12.2011 passed by learned 3rd Additional District Judge, Damoh in Civil Suit No. 2A/10 which has been challenged by the complainant before the High Court by filing F.A. No. 37.2012 and still pending for adjudication. According, to petitioner there is no stay order in favour of the complaint.

10. In view of Section 15 of the Hindu Marriage Act, 1955, remarriage is permissible only after the expiry of the period of appeal without any appeal being preferred, or where an appeal has been filed, after its dismissal. Since the appeal remains pending and the decree has not attained finality, the marital tie cannot be treated as conclusively severed for the purpose of remarriage.

11. Accordingly, any remarriage contracted during the pendency of the appeal irrespective of stay order whether granted or not would be legally impermissible and fraught with consequences under law, including exposure to proceedings under Section 494 of the IPC. Herein, the petitioner has not shown any circumstances which does not fall under Section 15 of Hindu Marriage Act, 1955.

12. Accordingly, this Court has no hesitation to say that the learned trial Court has not committed any error in framing the charge under Section 494 of IPC against the petitioner.

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13. So far as another ground relating to double jeopardy for the offence under Section 498-A of IPC is concerned, on perusal of order dated 13.06.2022, it appears that, the present FIR got registered for the incident occurred during the period from year 2008 to 2021 whereas the petitioner was acquitted in earlier case for the allegations made prior to year 2008. Since, Section 498-A is a

continuing offence and fresh acts of cruelty give rise to a new cause of action and the facts and duration in the present case are different, therefore, there is no flaw in framing the charge repeatedly for the offences punishable under Section 498-A of IPC.

14. However, merits of the matter in respect of Section 498-A of IPC is concerned, it is evident from the record that earlier respondent No.2 had lodged an FIR at Damoh and the petitioner has been acquitted by the competent Court and the acquittal has attained finality. Admittedly, the petitioner has obtained the decreed of divorce from the competent Court of Law and since thereafter, the petitioner and respondent have been residing separately. In the FIR in question, there is no specific allegations have been made by the respondent No.2 in respect of 498-A of IPC. The allegations made thereunder are appears to be afterthought.

15. As regards Section 506 IPC, the allegations are omnibus and arise out of matrimonial discord. In view of the earlier acquittal and the nature of dispute, continuation of proceedings would not serve any fruitful purpose.

16. Therefore, charges framed under Section 498-A and 506 of IPC vide order dated 13.06.2022 by JMFC Panna are hereby quashed.

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17. Now, the issue that arises for consideration before this Court is whether the charge under Section 494 of the Indian Penal Code can independently survive once the charges under Sections 498-A and 506 IPC stand quashed. Section 494 IPC, being an offence falling under Chapter XX, is expressly governed by the embargo contained in Section 198 Cr.P.C., which mandates that no court shall take cognizance of such offence except upon a complaint made by the aggrieved person.

18. Upon consideration of the record and the legal position governing Section 198 of the Code of Criminal Procedure, it is evident that although Section 494 of the Indian Penal Code falls within Chapter XX and ordinarily requires cognizance to be taken upon a complaint by the aggrieved person, the present FIR was admittedly lodged by the legally wedded wife herself. The object of Section 198 CrPC is to prevent vexatious prosecution at the instance of strangers and not to defeat a prosecution genuinely initiated by the aggrieved spouse. In the instant case, the criminal law was set in motion by the complainant-wife, and she has participated in the proceedings. Therefore, mere registration of the case through a police report does not vitiate the cognizance so taken. The FIR, in substance, satisfies the requirement of a complaint within the meaning of Section 198 CrPC. Consequently, notwithstanding the quashing of the charge under Section 498-A IPC, the prosecution under Section 494 IPC survives and is legally maintainable.

19. The inherent powers under Section 482 Cr.P.C. are to be exercised to prevent abuse of the process of Court and to secure the ends of NEUTRAL CITATION NO. 2026:MPHC-JBP:12781 8 MCRC-47119-2023 justice. In the facts and circumstances of the case, continuation of criminal proceedings under Section 498-A and 506 IPC would amount to abuse of process of law. However, prima facie, this Court finds that the petitioner has performed remarriage during the pendency of

first appeal, and therefore, there is no apparent error in the face of record for framing the charge under Section 494 of IPC by the trial Court.

20. Accordingly, the petition is partly allowed.

21. Therefore, charges framed under Section 498-A and 506 of IPC vide order dated 13.06.2022 passed by JMFC, Panna and affirmed vide order dated 05.08.2023 passed by learned Second Additional Sessions Judge, Panna in CRR No. 54/2022 are hereby set aside. However, proceedings shall continue in relation to offence under Section 494 of IPC.

(HIMANSHU JOSHI) JUDGE Jasleen